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Report Highlights:

This report contains notes taken by U.S. Mission China staff during two recent outreach sessions conducted by a surrogate(s) for the General Administration of Customs of the People's Republic of China (GACC) on Decrees 248 and 249. The outreach and information sessions were held in-person in Shanghai on October 15 and in a virtual environment on October 17. GACC officials from the Import/Export Food Safety Bureau have yet to answer many questions or provide substantive responses to issues identified by the U.S. Government or industry on these decrees.

General Information

U.S. Mission China is providing these notes from two recent information sessions on Decree 248 and Decree 249 conducted by personnel who are affiliated with GACC. Their statements, however, do not necessarily represent the official position of GACC or the PRC but were delivered as subject matter experts on the decrees. GACC officials from the Import/Export Food Safety Bureau which is responsible for the decrees have not provided many answers to questions asked by the U.S. Government or industry. While FAS China is furnishing these notes, they are an unofficial record of the information sessions; only the original Chinese language text of the decrees and GACC correspondence is considered official. FAS China is not in a position to endorse the words or remarks of the speakers but is providing bulleted information as delivered in order to educate U.S. industry.

FAS China will continue to provide information on the implementation of Decree 248 and Decree 249 as it is received. To date GACC has not answered U.S. industry or U.S. Government questions on the two decrees. Given the proximity of the October 31 deadline noted in the September 29, 2021 letter from GACC (linked below), and the December 31, 2021 implementation deadline, interested entities are encouraged to contact GACC directly with concerns or questions.

Note: The September 29 letter from GACC provides the following contact points for inquiries:

Contacts: Ding Tianjian, Shang Kaiyuan

Phone: +86-15900270722; +86-10-65194443

Fax: +86-10-65194715

Email: shipinjuyichu@customs.gov.cn; division_registration@customs.gov.cn

Existing USDA FAS China GAIN reports on Decree 248 and Decree 249

- [Decree 248](#) : Overseas Facilities Registration Regulation
- [Decree 249](#) : Administrative Measures on Import and Export Food Safety
- [Decrees 248 and 249](#) Status Update on Facilities Registration and Food Safety Measures
- [Decree 249, Article 30](#) Interpretive Guidance on Imported Food Labeling Requirements
- [GACC Issues Explanatory Letter and Annexes on Decree 248](#) Unofficial Translation of Letter and Annexes

Information Session Notes and Background

U.S. Mission China staff were among the many participants who joined two recent information sessions on Decree 248 and Decree 249. These notes include information from the October 15, Shanghai CICC Session on Decree 248 and 249, and the October 17, European Chamber of Commerce on-line training session on Decree 248. The bulleted text is FAS China's best representation of information presented by the session speaker(s) and is not an endorsement of the information.

Communication:

- Firms were told repeatedly to contact embassies, consulates, and competent authorities for information about registration.
 - Firms may be registered if they are on an existing bilateral agreement list.
 - When a foreign country and China have a bilateral agreement or protocol, such agreements and protocols prevail. [Note: It is not clear how GACC interprets existing agreements or protocols. End Note.]
- Speakers stated that GACC does not intend to cause a negative impact on trade.
- GACC will release a “Check List of Items for Cross Check”, which will be used by facilities attempting to register in the online system, the recommending competent authority of the foreign government, and GACC.

Harmonized Tariff System (HS) Codes:

- GACC is going to release the HS codes of the 18 categories of products that require recommendation by foreign competent authorities for registration.
- GACC will share a comparison table of HS codes and products.
- GACC will release an online tool to identify which commodity group applies to a product by HS Code.
 - The online tool will go live “soon.”
 - The result of the commodity grouping will determine which type of registration is required (i.e., competent authority recommendation or self-registration).
- HS codes are being entered into GACC’s existing CIPHER system, which will be used to register overseas facilities; the system is being “adjusted” and will be ready for use shortly.

Single Window Registration and CIPHER:

- This system is for products outside of the 18 product categories that require “recommendation” by a competent authority of the exporting country.
 - This registration process will open on November 1, 2021.
 - The speakers stated that GACC has approved the printing of new implementing rules for this process.
 - The public will be able to purchase a copy “soon.”
- Firms must submit their applications by December 31, 2021.
 - They will have until June 2023 to complete missing components of their self-registration.
- The CIPHER system will be accessed via the Single Window website.
- GACC will release a document explaining how to use the CIPHER system.
- GACC can do registration on behalf of a firm, but the firm must complete a form.
- If you export products to China, you must self-register or be “recommended” by a competent authority.

Registration Numbers:

- Facility registration numbers must be on the inner (sales) and outer packaging.
 - China will issue registration numbers for facilities.
 - The speakers contradicted each other on if registration number on inner and outer packaging must be the China issued number or if a number issued by the exporting country or a competent authority can be used. [Note: Article 15 of Decree 248 states that “A registered producer shall mark the Chinese registration number or the registration number approved by the competent authority of the country/region on the inner and outer packaging of the foods exported to China.” End Note.]
- There are no restrictions on how registration numbers are written, only that they are clear.
- For other specific labeling requirements, facilities must follow existing national food safety standards for labeling.
 - Consult the Chinese standard GB7718 [General Principles for the Labeling of Prepackaged Foods](#) for new labeling requirements.

Attachments:

No Attachments.